

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TEJAS SURYAPRAKASH PADLIYA,	)	Case Number: FDI-23-798522
Petitioner	)	Hearing Date: July 7, 2026
VS.	)	Hearing Time: 9:00 AM
POONAM RAJVAIDYA,	)	Department: 403
Respondent	)	Presiding: BOBBY P. LUNA
	)	

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Tejas Padliya (Father) and Respondent Poonam Rajvaidya (Mother).
According to the Petition filed 8/24/2023 and the Response filed 10/5/2023, the parties agree that they married on 10/10/2021 and separated on 7/31/2023, for a marriage of 1 year and 9 months. The parties' daughter Siya was born on 6/10/2023.
- 2) On 12/27/2023, the Court entered a Restraining Order After Hearing for Mother's protection. The restraining order expires on 12/27/2026.
- 3) On 5/29/2024, Mother filed a Request for Order seeking guideline child support, which was set for hearing on 11/14/2024.
- 4) On 11/14/2024, the Court continued the hearing to 1/16/2025 and ordered both parties to file and serve updated Income and Expense Declarations.
- 5) On 1/14/2025, Father filed an Income and Expense Declaration. Father stated that he was 34 years old and has a college degree and a master's degree. Father stated he was most recently employed as a Software Engineer for Roche from 10/1/2021 through 6/28/2024. According to the

1 paystubs attached to Father's Income and Expense Declaration, Father was working full-time and
2 earning \$18,414 per month. Father stated he had \$21,000 in cash savings and \$36,000 in easily
3 saleable investments, and that he owed \$49,000 for "Personal Study Loan" and \$20,000 for
4 "Marriage expenses loan."

5 6) At hearing on 1/16/2025, the Court set child support to \$0 given Father's statement that his most
6 recent job ended in June 2024, and Father's assertion that he was unemployed and looking for
7 work. The Court set a review hearing for 4/29/2025 to review child support and consider
8 imputing income to Father based on his earning capacity. The Court ordered both parties to file
9 and serve update declarations as well as updated Income and Expense Declarations at least 10
10 calendar days prior to the 4/29/2025 hearing date (neither party complied with this order).

11 7) On 4/24/2025, Father filed a Request to Reschedule the 4/29/2025 hearing. Father stated that he
12 was "scheduled for a full day job interview on the same date as the hearing." Father also stated:
13 "As I am currently unemployed, international student on a visa (F-1), securing employment is
14 critical for maintaining my lawful status and supporting myself and my dependent." Per the Order
15 On Request to Reschedule Hearing filed 4/24/2025, the Court granted Father's request and
16 continued the review hearing to 7/3/2025.

17 8) On 6/26/2025, Father filed a Responsive Declaration in which he asks that the \$0 child support
18 order continue until Father finishes his MBA program in December 2026. Father states that his
19 "international F-1 student visa...does not permit me to work outside the scope of authorized
20 practical training." Father also states that he "applied for roles for the summer of 2025" but "was
21 not able to secure any offers." Father states that he shared his applications with Mother's attorney
22 in March 2025. Father states he will "continue to seek internship opportunities and hope to secure
23 one for the Spring of 2026" and he intends to pursue full-time employment upon completion of
24 his MBA program in December 2026.

25 9) The Court ordered the parties to appear at the 7/3/2025 hearing because Mother had not filed any
26 pleadings since the prior 1/16/2025 hearing date. At the 7/3/2025 hearing, Father stated he still
27 lives in San Francisco, and he is using his savings to pay for expenses. Mother's attorney stated
28 Father's online profiles show that Father is employed. The Court ordered Mother's attorney to put
29 her requests in writing and file her pleadings by 7/24/2025. The Court set a future hearing date of

1 8/21/2025. The Court ordered both parties to file and serve updated Income and Expense
2 Declarations at least 10 calendar days in advance of the 8/21/225 hearing date. The Court noted
3 that it would be inclined to impute at least minimum wage income to Father.

4 10) On 7/25/2025, Father filed a Request to Reschedule the 8/21/2025 hearing. Father stated: "Due to
5 significant financial hardship and my current circumstances, I require additional time to
6 adequately prepare and represent my position effectively. Over the past month, I have diligently
7 applied to more than 100 jobs without success. Currently, I have no source of income and face
8 particular difficulty securing employment due to my status as an international student on an F-1
9 visa. The constraints of my visa status have exacerbated the already challenging job market,
10 significantly impacting my financial stability. Additionally, I am scheduled to attend a full-day
11 technical Computer Science conference on the date of the hearing. Attendance at this event is
12 essential for networking opportunities and potential employment leads, which could substantially
13 improve my financial situation and my ability to support my child." The Court has not yet ruled
14 on Father's request for a continuance.

15 11) On 8/4/2025, Mother filed a document entitled "Child Support Updates and Calculations."

16 Mother states: "Despite being ordered to submit proof of his immigration status to Respondent's
17 counsel, Petitioner has not complied... Petitioner has had over a year since May 2024 to seek
18 employment...nevertheless his actual employment termination occurring in October 2024."

19 Mother did not explain the basis for her belief that Father's most recent position of employment
20 ended in October 2024 (and not June 2024 as Father stated in his Income and Expense

21 Declaration filed 1/14/2025). Mother further states: "Petitioner resides in downtown San
22 Francisco with a rental cost of approximately \$3,000 per month, attends an MBA program costing
23 about \$50,000 annually, and incurs an estimated \$2,500 in additional monthly living expenses.

24 These financial commitments clearly indicate the Petitioner's access to substantial resources."

25 Mother requests that the Court "impute Petitioner's income as follows: From May 2024 to
26 October 2024 \$16,000 monthly income. From October 2024 to present: \$13,333 monthly
27 income."
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29

1 12) On 8/18/2025, Mother filed an Income and Expense Declaration. According to the paystubs
2 attached to Mother's Income and Expense Declaration, she is employed as a software engineer at
3 eBay and earns \$14,483 per month.

4 13) Per the Proof of Service filed 8/18/2025, Mother's declaration was emailed to Father on
5 8/12/2025 and her Income and Expense Declaration was emailed to Father on 8/18/2025.

6 14) On 8/18/2025, Father filed a Declaration. Father states that Mother "did not file or serve any
7 written requests or pleadings by July 24, 2025, as the Court directed in July hearing. I was
8 deprived of the opportunity to review her written requests and meaningfully prepare any required
9 responses within the timeframes set by the Court. For that reason, I respectfully request additional
10 time to respond to any requests Respondent was required to file but did not timely file... The
11 court has multiple times directed Respondent to file her income and expense statements, but she
12 has not yet filed them. I am F-1 international student visa and under the federal rules I do not
13 currently have employment authorization."

14 15) The Court notes that as of 8/20/2025 Father had not filed an Income and Expense Declaration
15 since 1/14/2025, despite multiple Court orders requiring him to file and serve an updated Income
16 and Expense Declaration.

17 16) At the prior 8/21/2025 hearing, the Court ordered, in pertinent part:

- 18 a. The Court finds good cause to impute to Father 20 hours of minimum wage income per
19 week effective 9/1/2025, as the Court finds that Father has the ability and opportunity to
20 be earning at least this amount while school is in session.
- 21 b. Mother is welcome and encouraged to conduct discovery. The Court will reserve its
22 jurisdiction to modify child support retroactive to 9/1/2025. If Mother can present
23 evidence that Father has access to more financial resources than he claims and if Mother
24 can prove that Father has been earning more than half-time minimum wage income per
25 month since 9/1/2025, despite Father's statements under penalty of perjury that he is
26 currently earning \$0, the Court will consider modifying child support retroactive to a date
27 on or after 9/1/2025.
- 28 c. Effective 9/1/2025, Father shall pay to Mother \$107 per month by the 1st of each month.
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1 d. Effective 9/1/2025, Father shall abide by the attached Seek Work Order. If Father obtains
2 a position of paid employment, he shall immediately notify Mother and the Court's
3 jurisdiction to modify child support retroactive to the date he begins receiving
4 employment income is reserved.

5 e. The Court sets a future hearing date of Tuesday, 1/20/2025 at 9:00 AM in Dept. 403 to
6 review child support. At least 10 calendar days prior to the next hearing date, both parties
7 shall file and serve an Update Declaration providing the Court with any material updates
8 and shall file and serve an updated Income and Expense Declaration. Failure to timely
9 file and serve either of these declarations will result in the Court imposing sanctions on
10 that party of at least \$1,000.

11 17) On 1/6/2026, Mother filed an updated Income and Expense Declaration and update declaration.
12 Mother asserts that a confidential investigative report shows that Father has a 1099 in his own
13 name, and he is currently employed by Roche Diagnostics and Medtronic. Mother further asserts
14 that Father maintains a well-established online presence and professional reputation. Mother
15 states Father has not made any child support payments since 9/1/2025. Mother requests Father be
16 ordered to pay the outstanding payments and that child support be modified retroactive to
17 9/1/2025.

18 18) On 1/9/2026, Father filed an updated Income and Expense Declaration and update declaration
19 asserting that he transferred the monthly child support payments to Mother via Zelle and listing
20 transaction ID numbers for 5 payments of \$107. Father states that he does not currently have
21 work authorization and remains unemployed at this time.

22 19) On 1/13/2026, Mother filed an additional update declaration asserting that Father was been
23 previously ordered to comply with preliminary disclosure requirements and sanctioned for his
24 failure to comply. Mother asserts that Father still has not complied and requests the Court order
25 compliance.

26 20) At the prior 1/20/2026 hearing, the Court ordered, in pertinent part:

27 a. The Court finds Mother did not meet her burden to show good cause as to why child
28 support should be modified given that the Court was not provided with evidence of
29 Father's earnings or proof that he was working more than 20 hours per week.

- 1 b. The Court's order effective 9/1/2025 shall remain in full force and effect.
- 2 c. Within the next 30 days, Father shall provide Mother with his tax returns, W-2's and
- 3 1099's for 2024 only.
- 4 d. As it is unclear to the Court whether Father has been providing Seek Work Logs as
- 5 previously ordered, Father is admonished to comply with that order forthwith.
- 6 e. A review hearing is set for Tuesday, 7/7/2026 at 9 AM in Dept. 403.
- 7 f. The Court continues to reserve jurisdiction to modify child support retroactive to
- 8 9/1/2025.
- 9 g. Mother's request regarding Father's failure to comply with Family Code section 2104 is
- 10 beyond the scope of the hearing pursuant to Family Code section 213. However, the
- 11 Court notes Father filed a Preliminary Declaration Regarding Declaration of Disclosure
- 12 and Income and Expense Declaration (FL-141) on 3/24/2025. In so far as Father has not
- 13 fully complied with Family Code section 2104, he is warned that mandatory sanctions
- 14 may result (see Family Code section 2107(c)).
- 15 h. Mother's attorney shall prepare the Findings and Order After Hearing.

16 21) At hearing on 5/26/2026, the Court granted Mother's request for \$20,605 in Family Code section

17 6344 attorney's fees and ordered Father to pay within 30 days. See Mother's Request for Order

18 filed 3/17/2026.

19 22) On 6/8/2026, Mother filed an update declaration asserting that Father misrepresented his income

20 and requesting the Court impute Father at his previous earning capacity as a Software Engineer of

21 \$182,163 (or approximately \$15,180 monthly). Mother requests an order retroactive to May 2024

22 with arrears calculated by the Court. Mother attached Father's 2024 tax return.

23 23) On 6/15/2026, Mother filed an updated Income and Expense Declaration indicating she earns

24 \$12,470 in average monthly income, has \$2,000 in cash assets, and pays \$9,350 in average

25 monthly expenses (\$2,000 of which is childcare).

26 24) On 7/1/2026, Father filed a Responsive Declaration in opposition to Mother's 3/17/2026 Request

27 for Order, which the Court granted at hearing on 5/26/2026.

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1 25) On 7/1/2026, Father filed an updated Income and Expense Declaration indicating he earns \$0 in
2 average monthly income, receives \$85 in average monthly dividends, has \$1,200 in cash assets,
3 has \$6,000 in easily saleable funds, and pays \$6,972 in average monthly expenses.

4 26) On 7/1/2026, Father filed a supplemental declaration wherein he objects to Mother's update
5 declaration asserting timely and proper service was not effectuated. Father opposes Mother's
6 request the Court calculate arrears retroactive to May 2024 as the Court only reserved jurisdiction
7 retroactive to 9/1/2025. Father reiterates his position that he earns \$0 in income and has earned \$0
8 since 9/1/2025.

9 **B. Findings and Order**

10 1) As the party seeking modification of child support, Mother bears the burden of showing a change
11 of circumstances warranting a modification of the order effective 9/1/2025 (Findings and Order
12 After Hearing on 8/21/2025). See *Marriage of Bardzik* (2008) 165 CA4th 1291, 1303-1304.

13 2) At the prior 1/20/2026 hearing, the Court made a finding that Mother did not meet this burden
14 given that the Court was not provided with evidence of Father's earnings or proof that he was
15 working more than 20 hours per week.

16 3) On 6/8/2026, Mother filed an update declaration attaching Father's 2024 tax return, which shows
17 that Father's previous earning capacity as a Software Engineer was \$182,163 (or approximately
18 \$15,180 monthly).

19 4) However, it is undisputed that Father concluded this role on 6/28/2024, a fact the Court
20 considered in its original order setting child support to \$0.

21 5) Though Mother sufficiently established Father's previous earning capacity as a Software
22 Engineer, Mother did not present any evidence that Father currently has access to more financial
23 resources than he claims or has been earning more than half-time minimum wage income per
24 month since 9/1/2025.

25 6) Mother's request for modification of child support is therefore DENIED as Mother provided no
26 proof of Father's current ability to earn at his previous earning capacity. The Court requires
27 concrete evidence of ability and opportunity to earn at the imputed level.

28 7) The Court's order effective 9/1/2025 shall remain in full force and effect. See Findings and Order
29 After Hearing on 8/21/2025 (file dated 11/21/2025).

8) The Court will prepare the Findings and Order After Hearing.